

Spiral 4 Wireless Task Order N0024424D0005, N0060425FD021 has been awarded on 28 March 2025. In accordance with FAR 6.305(a), the attached redacted copy of the Justification For Exception To Fair Opportunity, which limited competition to one contractor, is being posted to the Government Point Of Entry within 14 days after task order award.

JUSTIFICATION FOR EXCEPTION TO FAIR OPPORTUNITY

1. Identification of Agency and Contracting Activity

Requiring Activity- US Indo Pacific Command (USINDOPACOM)

Contracting Activity- NAVSUP FLC Pearl Harbor Hawaii Contracting Office

2. Nature and/or Description of the Action Being Approved

The proposed acquisition is to procure wireless cellular services in the INDOPACOM Area of Responsibility (AOR) to include the Marshall Islands. The services are required to support INDOPACOM operations in the region. The Period of Performance will be a base year of 01 Apr 2025 through 31 March 2026, with four (4) additional option years. This proposed action is a follow on to USINDOPACOM's current Spiral 3 wireless contract with AT&T, N0024418D0001 Task Order N0060418FD070 which is set to expire on 31 March 2025.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

The proposed acquisition is to procure wireless cellular services in the INDOPACOM Area of Responsibility (AOR) to include the Marshall Islands. The services are required to support INDOPACOM operations in the region. The Period of Performance will be a base year of 01 Apr 2025 through 31 March 2026, with four (4) additional option years with a total estimated value of [REDACTED]. This proposed action is a follow on to USINDOPACOM's current Spiral 3 wireless contract with AT&T, N0024418D0001 Task Order N0060418FD070 which is set to expire on 31 March 2025. The proposed action includes a quantity of 300 ELIN AB02- Unlimited Voice/Unlimited Text/Unlimited Data (w/Network approved Smartphone 1-GEN behind current market offering); quantity of 20 iPads and 20 mobile internet hotspots under ELIN AB03- Unlimited Data Only (w/MiFi (hotspot) or Internet Device; and all devices will have ELIN AD01- International Services, A combination of voice, text, and data services when both calling and traveling into and out of the country. Also, in the base year (ELIN AD03), Option Year 2 (ELIN CD03), and Option Year 4 (ELIN ED03), the end user will be one-time purchasing quantity of twenty (20) new iPads every two (2) years to go with the services provided in ELIN AB03 (Base), CB03 (Option Year 2), and EB03 (Option Year 4).

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period

Base Year, 01 April 2025 – 31 March 2026

Option Year One (1), 01 April 2026 – 31 March 2027

Option Year Two (2), 01 April 2027 – 31 March 2028

Option Year Three (3), 01 April 2028 – 31 March 2029

Option Year Four (4), 01 April 2029 – 31 March 2030

Subtotals

4. Statutory Authority Permitting Exception to Fair Op

10 U.S.C. 3406(c)(5) as implemented by FA
(B) Only One Awardee is Capable

Additional Information Regarding Statutory Authority if Applicable

5. Identification of the Exception to Fair Opportunity Rationale and/or Demonstration of Contractor's Unique Qualifications

On 22 Jan 2025, the Contracting Officer sent out a market research request for information (RFI) to all seven (7) Spiral 4 Wireless MAC contractors, AT&T, Verizon, T-Mobile, MetTel, Hughes, Real Mobile, and Wide Point. This RFI provided all of the countries that USINDOPACOM included in their Spiral 4 Price Estimate calculator, and inquired if each carrier could provide service coverage within each of the following countries:

-China

- Nepal
- Marshall Islands
- Mongolia
- Laos
- Bangladesh
- Bhutan
- Brunei
- Tonga
- Philippines
- India
- Australia
- Singapore
- Japan
- Korea

The Contracting Officer requested a response by 3:00 PM HST on 24 Jan 2025. AT&T initially responded that they could not provide services in the Marshall Islands, however when USINDOPACOM's current Spiral 3 task order N0024418D0001, N0060418FD070 was awarded back on 2018, they provided service in that country. The Contracting Officer brought this to their attention, and AT&T responded that they previously had a roaming agreement with the Marshall Islands but that is no longer the case, however AT&T did also state that they do provide coverage on the Kwajalein Atoll portion of the Marshall Islands, but not the main island. AT&T also stated that their customers from the Missile Defense Agency confirmed that their services are the only carrier that works on Kwajalein Atoll.

RFI responses from Verizon, T-Mobile, Widepoint, and Real Mobile. Verizon stated that they do not provide services within the Marshall Islands and recommended the end user obtain a local SIM card within that country. T-Mobile stated the same and that they could unlock the device in order for a local SIM card to be used. Widepoint stated that they are a carrier-neutral vendor on Spiral 4 using AT&T, Verizon, and T-Mobile networks and also stated they can't provide coverage on the Marshall Islands and recommended obtaining a local SIM card. Real Mobile stated that they are unable to provide data services within the Marshall Islands, and regarding voice services they can only provide services when calling into the Marshall Islands when there is an Internet connection such as LTE, 4G, or 5G. When within the Marshall Islands, Real Mobile requires a WiFi connection to voice services to call out and from within the Marshall Islands. This does not meet the requiring activity's need to have a phone device that can provide both voice and data services on its own. MetTel and Hughes did not respond by the RFI deadline.

The cellular services required in the Marshall Islands are unique and highly specialized due to the remote location and limited infrastructure. Historically AT&T has been the only contractor capable of providing services in this country, even if its just a portion of it. The company has the necessary expertise, equipment, and experience to provide reliable and secure cellular services in the region. As referenced above, the other contractors with Spiral 4 wireless contracts do not have the same level of capability, and therefore, cannot meet HQ-USINDOPACOM's requirements. INDOPACOM personnel does travel to parts of the Marshall Islands. The last known travel to the Marshall Islands was 12-20 Oct 2024 and more travel to follow (schedule for travel team is not completely set, however need to be ready for anything within the INDO Pacific AOR). When personnel do travel to parts of the Marshall Islands it is crucial they have a means of having a means of connection back to HQ.

Additional information/any other facts supporting the use of an exception to the fair opportunity process

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable, including a Description of Market Research, if applicable, and a List of Interested Sources, if any.

Please reference "Identification of the Exception to Fair Opportunity Rationale and/or Demonstration of Contractor's Unique Qualifications" section above.

7. Actions to Remove Barriers to Future Competition

N/A

8. Fair and Reasonable Determination

9. Contracting Point of Contact

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

Technical Cognizance

Requirements Cognizance

Contracting Officer's Signature

Legal Sufficiency Review

HCA Approval

